

ECAPFX Proprietary Firm Privacy Policy

Effective Date: 11 April 2025

Applicable Law: UK General Data Protection Regulation (UK GDPR), Data Protection Act 2018, Financial Conduct Authority (FCA) Principles (where applicable)

1 Introduction

ECAPFX Proprietary Firm (“ECAPFX”, “we”, “our”, or “us”) is committed to protecting and respecting your privacy. This Privacy Policy explains how we collect, use, disclose, and safeguard your personal data when you use our website (www.ecapfx.com) and services. By using our website or services, you agree to the collection and use of your personal data as described in this Policy.

2 Data Controller

ECAPFX Proprietary Firm is the Data Controller for your personal data under UK GDPR.

Registered Address: Office 7330MO 182-184, High Street North Area 1/1, East Ham, London, E6 2JA

Contact Email: privacy@ecapfx.com

3 Information We Collect

3.1 Information You Provide Directly

- Names, contact details (e.g., email address, phone number)
- Addresses
- Gender, occupation, date of birth, marital status (where relevant for KYC/AML)
- Third-party information (e.g., family members or other relevant parties for verification)
- Billing or payment information (processed via secure payment providers, e.g., PayPal, Stripe)
- Trading activity and challenge participation data
- Uploaded documentation (e.g., government-issued ID for KYC, which may include biometric data such as facial images)
- Employment details (e.g., salary, length of service, where required for verification)
- Financial data (e.g., income, expenditure for AML checks)
- Transaction data (e.g., payments, products/services purchased)

3.2 Information We Collect Automatically

- IP address, browser type, operating system
- Usage data (e.g., pages visited, time spent on our website, user journey information)
- Cookies and similar tracking technologies (see Section 8)
- Website user information (e.g., interaction with products and services)

3.3 Third-Party Data

- Data from payment processors (e.g., PayPal, Stripe), KYC/AML verification services (e.g., Kenmore Design), and analytics platforms
- Social media data if you interact with our content
- Suppliers and service providers (e.g., for verification or support)

4 Where We Get Personal Information From

We obtain personal information:

- Directly from you (e.g., via registration forms, KYC submissions)
- From suppliers and service providers (e.g., payment processors, KYC partners)

5 How We Use Your Information

We use your personal data to:

- Provide and manage our trading challenges and funded account programs
- Deliver customer support and respond to inquiries
- Fulfil our contractual and regulatory obligations, including AML compliance and KYC
- Improve our website and services (e.g., analyzing user behavior to enhance platform functionality)
- Prevent fraud and enforce our terms of service
- Comply with applicable laws and regulations
- Operate client or customer accounts (e.g., purchase or service history, account information)
- Send information updates or marketing communications (with consent)
- Deal with queries, complaints, or claims (e.g., correspondence, location data if relevant)

5.1 Special Category Data

KYC documents (e.g., passports) may include biometric data, such as facial images, processed to comply with AML/CTF regulations under the substantial public interest condition (UK GDPR Article 9(2)(g)).

6 Legal Basis for Processing

We process your personal data based on the following lawful bases:

- **Consent:** For marketing emails or non-essential cookies. You have the right to withdraw consent at any time.
- **Contract:** To deliver services you sign up for (e.g., trading challenges, operation of client accounts).
- **Legal Obligation:** To comply with laws (e.g., AML checks under Money Laundering Regulations 2017, KYC requirements).
- **Legitimate Interests:** To improve services, prevent fraud, and operate effectively (e.g., usage data analysis).

All of your data protection rights may apply, except where exemptions exist (e.g., right to object not available under contract; right to erasure/portability limited under legal obligation).

7 Data Sharing and Disclosure

We do not sell your personal data. We may share your information with:

- Verified payment processors (e.g., PayPal, Stripe)
- KYC/AML verification partners (e.g., Kenmore Design for document authentication, including passports, driving licenses, and other IDs)
- UK/EU-based IT and hosting service providers
- Legal or regulatory authorities (e.g., FCA, HMRC) when required by law
- Data processors who perform activities on our behalf (e.g., verification services)
- Organisations were legally obliged to share personal information with

All third parties are contractually required to comply with UK GDPR. A list of key processors is available at www.ecapfx.com/processors.

8 International Data Transfers

Where we transfer your personal data outside the UK or European Economic Area (EEA) (e.g., to US-based payment processors), we ensure adequate safeguards, such as UK-approved Standard Contractual Clauses or UK-specific addenda, to protect your privacy rights. For Kenmore Design (located in the United Kingdom), no international transfer occurs, but if any sub-processing involves non-UK locations, Standard Contractual Clauses apply.

9 Cookies and Tracking Technologies

We use cookies and similar technologies to:

- Enable essential website functionality
- Analyse usage to improve user experience
- Personalise content and marketing communications
- Track affiliate marketing campaigns

Our cookie banner allows granular consent (e.g., separate options for analytics and marketing cookies). Non-essential cookies (e.g., analytics, marketing) are retained for up to 12 months. Third-party cookies may be set by analytics or affiliate platforms (see Cookie Policy). For details, refer to our Cookie Policy at www.ecapfx.com/cookie-policy.

10 Data Retention

We retain your personal data only as long as necessary to:

- Provide our services and support you
- Comply with legal requirements (e.g., 67 years for AML, accounting, and financial records under Money Laundering Regulations 2017 and HMRC rules)
- Respect your marketing consent preferences until withdrawn

Non-regulatory data (e.g., usage data, IP addresses) is retained for up to 12 months for analytics purposes. Data is securely deleted or anonymized after retention periods expire. For more information on retention criteria, contact us at privacy@ecapfx.com.

11 Your Data Protection Rights

Under UK GDPR, you have the right to:

- Access the personal data we hold about you (including details on sources and sharing)
- Request correction of inaccurate or incomplete data
- Request erasure of your data (“right to be forgotten”), subject to legal obligations
- Object to or restrict certain processing activities
- Request portability of your data in a structured, machine-readable format
- Withdraw consent at any time (without affecting prior processing)

To exercise these rights, email privacy@ecapfx.com. We will respond within one calendar month, with possible extensions for complex requests (up to two additional months). Certain rights (e.g., erasure) may be limited due to AML retention obligations.

12 Security of Your Data

We implement appropriate technical and organizational measures, including:

- Encrypted storage of data at rest and in transit
- Multi-factor authentication (MFA) for administrative access
- Staff training on data protection
- Access controls limiting data to authorized personnel
- Regular security and vulnerability assessments

In case of a data breach posing a high risk to your rights, we will notify the ICO within 72 hours and affected users as required by law.

13 Marketing Communications

We send marketing communications only with your explicit consent. You may opt out at any time by:

- Clicking the “unsubscribe” link in marketing emails
- Emailing privacy@ecapfx.com

Opt-out requests are processed within 48 hours. We never send unsolicited marketing messages.

14 How to Complain

If you have any concerns about our use of your personal data, you can make a complaint to us using the contact details above. If you remain unhappy with how we've used your data after raising a complaint with us, you can also complain to the ICO.

The ICO's address: Information Commissioners Office, Wycliffe House, Water Lane, Wilmslow, Cheshire, SK9 5AF

Helpline number: 0303 123 1113

Website: www.ico.org.uk/make-a-complaint

15 Changes to This Privacy Policy

We may update this Policy to reflect changes in laws, regulations, or our business practices. The latest version will be posted at www.ecapfx.com/privacy-policy with an updated effective date. We will notify users of significant changes via email or website banners.

16 Accountability and FCA Applicability

We conduct Data Protection Impact Assessments (DPIAs) for high-risk processing activities (e.g., KYC verification involving biometric data) to ensure compliance. As a non-broker, ECAPFX adheres to FCA Principles for Businesses where relevant to our operations as a financial technology and proprietary trading firm.

17 Contact Us

For questions about this Privacy Policy or your personal data, contact:

ECAPFX Proprietary Firm

Email: privacy@ecapfx.com

Website: www.ecapfx.com